

24NNCV00427 24NNCV00427

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-24

Motion: DEFENDANTS' MOTION FOR LEAVE TO WITHDRAW AND AMEND RESPONSES TO PLAINTIFF'S REQUESTS FOR ADMISSION, SET ONE

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Case Number: 24NNCV00427 Hearing Date: August 24, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

JAMES
MATYAS, et al.,

Plaintiff(s),

vs.

WEAVER
& ASSOCIATES, INC., et al.,

Defendant(s).

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CASE NO.: 24NNCV00427

[TENTATIVE]

ORDER RE: DEFENDANTS' MOTION FOR LEAVE TO WITHDRAW AND AMEND RESPONSES
TO PLAINTIFF'S REQUESTS FOR ADMISSION, SET ONE

Dept.

3

8:30

a.m.

August

24, 2026

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I.

INTRODUCTION

On July 23, defendants Weaver &
Associates, Inc. ("Weaver & Associates"), Ralph Weaver, Matthew Weaver,
Denise Weaver, and Dana Dattola (collectively, "Defendants") filed this motion
for leave to withdraw their responses to plaintiff James Matyas' Requests for

Admission, Set One, as follows:

1.

Denise

Weaver's responses to RFA Nos. 4 and 10

2.

Matthew

Weaver's response to RFA No. 1

3.

Ralph

Weaver's response to RFA No. 10

4.

Weaver

& Associates' response to RFA Nos. 2, 3, 10, and 14.

Plaintiffs filed an opposition brief on

August 10, 2026.

Defendants filed a reply brief on August

17, 2026.

II.

LEGAL

STANDARD

"Any matter admitted in response to a request for admission is "conclusively established against the party making the admission in the pending action, unless the court has permitted withdrawal or amendment of that admission." (Code Civ. Proc., § 2033.410, subd. (a).) An admission may be withdrawn or amended upon noticed motion with leave of court. (Code Civ. Proc., § 2033.300, subd. (a).) The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits. (Id., subd. (b).) Conditions may be imposed on the granting of the motion that are just, including an order that the party withdrawing or amending their admission bear the cost of additional

discovery, either in whole or in part. (Id., subd. (c).) “Because the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief.” (New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1420.)

III.

DISCUSSION

On July 15, 2026, the Court heard Plaintiff’s motion for evidentiary sanctions and struck 8 of Defendants’ supplemental responses to Plaintiff’s RFAs. The Court’s reasoning was that admissions could not be withdrawn or amended without leave of Court, which Defendants did not seek.

On July 23, 2026, Defendants filed this motion for leave to withdraw and amend those 8 admissions. The moving papers are supported solely by declaration from defense counsel, Herbert Hayden. Mr. Hayden states that his clients’ initial responses were served on January 14, 2026, before Defendants had an opportunity to “complete their review of the draft responses and execute verifications.” (Motion, Hayden Decl., ¶ 3.) Mr. Hayden claims he was operating under a tight deadline because Plaintiffs would not grant an extension and that he was busy preparing four sets of discovery responses for five different parties. This explanation hardly passes for “excusable neglect” because the discovery requests were propounded on September 29, 2025, and Plaintiffs previously already extended the deadline to respond from October 29, 2025, to November 10, 2025. The “deadline” Defendants faced was a hearing scheduled on January 28, 2026, for Plaintiffs’ motion to compel their discovery responses.

However, if the responses served on January 14, 2026 (“Initial Responses”) were in fact unverified, then they were tantamount to no responses at all. (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.) The parties do not specify whether verifications for the Initial Responses were ever provided or whether the only verifications provided were for the “supplemental” responses served on March 5, 2026. This fact is material because if the Initial Responses were never verified, the “supplemental” responses were inappropriately stricken and this motion is moot.

Furthermore, if the Initial Responses were never verified, this means that Defendants (and defense counsel) have made

material misrepresentations to the Court in their attempt to avoid evidentiary and monetary sanctions. Mr. Hayden's stated failure to obtain verifications before serving the Initial Responses on January 14, 2026, contradicts Defendants' argument made in opposing Plaintiff's prior motion for evidentiary sanctions. Rather, Mr. Hayden declared under penalty of perjury that "[a]ll Defendants served verified responses to Plaintiff's written discovery, Set One (Form Interrogatories, Special Interrogatories, Requests for Admission, and Requests for Production of Documents), on or about January 14, 2026. (7/17/2026 Declaration of Herbert J. Hayden, ¶ 3.)

Defendants also argued against evidentiary sanctions claiming repeatedly that they obeyed the Court's January 28, 2026, Order to serve verified responses by doing so on March 5, 2026. (7/17/2026 Opposition to Plaintiff's Motion for Evidentiary Sanctions, pp. 3-4, 7.) This, too, appears to have been a misrepresentation. The Court's ruling on January 28, 2026, ordered Defendants to serve verified, objection-free responses within 20 days and a notice of ruling was electronically served on January 30, 2026; therefore, Defendants did not abide by the Court's order as previously represented because they were not served within the specified timeframe.

In light of this factual gap in the record, the Court CONTINUES the hearing to _____ at 8:30 a.m. in Department 3 of the Alhambra Courthouse.

The Court also sets on that date an OSC why defense counsel, Herbert J. Hayden, in addition to defendants Weaver & Associates, Inc., Ralph Weaver, Matthew Weaver, Denise Weaver, and Dana Dattola should not be sanctioned for their misrepresentations made in opposing Plaintiff's motion for evidentiary sanctions.

Additionally, the Court requests briefing from Plaintiffs and Plaintiff's counsel regarding the estimated cost of any depositions and discovery that may need to be conducted in light of Defendants' "supplemental" discovery responses. Plaintiffs' counsel is also ordered to identify the attorneys' fees and costs incurred to: (1) oppose Defendants' instant motion to withdraw, (2) prepare Plaintiffs' motion for evidentiary sanctions and corresponding reply brief, (3) prepare for and attend the hearings held on July 15 and August 24, 2026.

Plaintiffs' briefing is to be filed no

later than 5 court days before the hearing date.

Plaintiffs to give notice.

Dated

this 24th

day of August 2026

William A.

Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.